

Document Reference Number – UHN-PO-122

Policy/Guideline Title:	Freedom to speak Up: Raising Concerns At Work		
Executive Summary:	This policy has been developed reflecting updated guidance on best practice to improve the culture of speaking up. It contains information to identify to staff how they might raise concerns, who they can raise concerns to, and what policies or other existing processes may be followed in seeking a resolution. The policy is separate from other People processes but identifies where joint working is required with a focus on equality, diversity and inclusion.		
Supersedes:	Northampton General Hospital Policy: NGH-PO-1255; Freedom to Speak Up: Raising Concerns At Work Kettering General Hospital Policy: A15; Speaking Up Policy		
Description of Amendment(s):	This is a UHN policy replacing the speaking up policies found individual at NGH and KGH as noted above, drawing from NHS England's National "Speaking Up" policy from June 2022 as a baseline.		
This policy will impact on:			
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1. INTRODUCTION

This policy will outline what speaking up (sometimes referred to as whistleblowing) is; how to speak up, and who you can speak to about your concerns- whether via internal or external routes. Speaking up is welcomed and we will listen. By speaking up at work you will be playing a vital role in helping us to keep improving our services for all patients, and the working environment for our staff.

This policy is for all our colleagues working in substantive fixed term, bank or voluntary position. [The NHS People Promise](#) commits to ensuring “we each have a voice that counts, that we all feel safe and confident to speak up and take the time to really listen to understand the hopes and fears that lie behind the words”.

2. PURPOSE

All NHS organisations and others providing NHS healthcare services in primary and secondary care in England are required to adopt the national Freedom to Speak Up Policy as a minimum standard to help normalise speaking up for the benefit of patients and workers. Its aim is to ensure all matters raised are captured and considered appropriately.

This policy has been developed with reference to the National Guardian’s Office [Freedom to Speak Up Policy Review Framework](#). Incorporated into this policy is [NHS England’s Freedom to speak up national policy](#). Local information for Northampton General Hospital (NGH) and Kettering General Hospital (KGH) is indicated where it is different.

The overall aims of this policy are to:

- Improve knowledge and understanding of speaking up.
- To assist staff in the process of raising concerns.
- To outline to staff what they can expect in raising their concerns and advise on escalation routes and timelines.
- To identify mechanisms put in place and the organisation’s role in supporting staff in raising concerns.

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3. SCOPE

This policy applies to all areas under University Hospitals of Northamptonshire Group (UHN) at both Trusts: Northampton General Hospital (NGH) and Kettering General Hospital (KGH). It applies for all colleagues across both sites, including any healthcare professionals, non-clinical workers, receptionists, directors, managers, contractors, volunteers, students, trainees, junior doctors, locum, bank and agency workers, and former workers.

4. SUBSTANTIVE CONTENT

We want to hear about any concerns you have, whichever part of the organisation you work in. We know some groups in our workforce feel they are seldom heard and are reluctant to speak up. We also know that workers with disabilities, or from a minority ethnic background or the LGBTQ+ community do not always feel able to speak up, and that certain staffing groups do not feel able to. **This policy is for all colleagues and we want to hear all our colleagues' concerns.**

4.1. What can I speak up about?

You can speak up about anything that gets in the way of patient care or affects your working life. That could be something which doesn't feel right to you for example:

- A way of working or a process that isn't being followed.
- You feel you are being discriminated against; or
- You feel the behaviour of others is affecting your wellbeing, or that of your colleagues or patients.

We encourage you to raise any matters whilst they are still a concern. You should feel assured that it is safe to speak up even if you aren't sure whether something is wrong – don't wait for a potential problem to escalate and remember you don't need to wait for proof. All colleagues have a professional duty to report a concern, so it doesn't matter if you turn out to be mistaken, or if you are unsure if something you have seen or heard is a concern; please raise it anyway.

Further examples of concerns you could speak up about include, but are not restricted to:

- Poor management, administration or clinical performance that may affect patient care or your work
- Unsafe working conditions (Physically or Psychologically)
- Inadequate induction or training for staff
- Lack of, or poor response to, a reported patient safety incident

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- An unsupportive culture or negative behaviours
- Lack of compliance with employment law and good people management practice
- Unacceptable behaviour (e.g. harassment or discrimination affecting employees, patients or visitors)
- Situations which may make it difficult for staff to comply with their professional codes of conduct
- Situations which impact on health and safety of patients, employees and visitors
- Health related problems impacting on an individual's ability to perform their role
- Suspicions of fraud, bribery or corruption or suspected/actual criminal offence
- Concerns about how colleagues are being treated
- Concerns about practices within our business or supply chains which support modern slavery and human trafficking

Speaking up can be about all of these things. It therefore captures a range of issues, some of which may be appropriate for other existing processes (for example, People Directorate or Patient Safety/Quality investigations), but if you are unsure you can seek advice and support from your Freedom to Speak Up (FTSU) Guardian as outlined in section [4.5](#).

4.2. Feeling safe to speak up

Your ability to speak up is a gift, because it helps identify opportunities for improvement that we might not otherwise know about.

We are aware that sometimes colleagues may be unsure as to whether their concerns have any substance and may be reluctant to raise them. All colleagues are encouraged to speak up even if in doubt.

We will not tolerate anyone being prevented or deterred from speaking up or being mistreated because they have spoken up. You will not be at risk of losing your job or suffering any form of reprisal as a result of speaking up, and harassment or victimisation of anyone raising a concern will not be tolerated.

Detriment

In the event that you do experience detriment as a result of speaking up, please report this directly to your line manager and/or Freedom to Speak Up Guardian, who will act in accordance with guidelines set out in Appendix 2 (Detriment Guidelines).

4.3. Who can speak up?

Anyone who works in NHS Healthcare. This encompasses any healthcare professionals, non-clinical workers, receptionists, directors, managers, contractors, volunteers, students, trainees, junior doctors, locum bank and agency workers, and former workers.

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4.4. Who can I speak up to?

4.4.1. Speaking up Internally

Most speaking up happens through conversations with supervisors and line managers where challenges are raised and resolved quickly. We strive for a culture where that is normal, everyday practice and encourage you to explore this option- it may well be the easiest and simplest way of resolving matters.

While these individuals are usually the best people to speak to, you should be able to speak up to anyone you think will be able to deal with the matter you raise and who you trust. If you think it's better to speak up to someone else, you're free to do this. There are various routes for speaking up outlined below so you can choose the one that feels right for you.

You could speak up to-

- **Your Freedom to Speak Up Guardian**, who can support you to speak up if you feel unable to do so by other routes. They ensure that people who speak up are thanked for doing so, that the issues they raise are responded to, and that the person speaking up receives feedback on the actions taken. Further information on speaking up to your Guardian at UHN is found in section 4.5. The Guardians work across both hospitals, and each have access to the raising concerns/speaking up inboxes for each site.

NGH Email: ngh-tr.raising.concerns@nhs.net

KGH Email: kgh-tr.kghfreedomtospeak@nhs.net

Individual Contact details of Guardians and Executive/Non-Executive leads can be found on the staff intranet: NGH: [Freedom to Speak Up Guardian](#)
KGH: <http://kghintranet/directorates/QG/ftsu/Pages/default.aspx>

- **A Freedom to Speak Up Champion**. Both Trusts have a network of champions across the organisation who offer an alternative to local representatives, for staff to get support and advice on concerns they may have. Details of our champions can be found on the NGH Intranet and KGH K-net.
NGH: [Freedom to Speak Up Values Ambassadors](#)
KGH: <http://kghintranet/directorates/QG/ftsu/Pages/default.aspx>
- **The Patient Safety Team/Clinical Governance Team** (where concerns related to patient safety or wider quality)

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NGH: ngh-tr.clinical.governance@nhs.net

KGH: kgh-tr.patientsafety@nhs.net

- Our Human Resources/People Team

NGH: [People Division \(Human Resources\)](#)

KGH: <http://kghintranet/staff/Pages/default.aspx>

- The Executive Lead is responsible for Freedom to Speak Up, and provides senior support for our speaking guardians and is responsible for reviewing the effectiveness of FTSU arrangements.

Or Non-Executive Lead, who provides more independent support with a fresh pair of eyes to ensure that investigations are conducted with rigor, and help escalate issues, where needed.

- Union Support

For any concerns where you require individual person specific support, for example but not limited to advice, representation during a formal People process, and guidance on matters pertaining to employment law, you may seek the support of your Staff Union.

4.4.2. Speaking up Externally

If you do not want to speak to someone within the organisation, you can speak up externally to:

- [The Care Quality Commission](#) (CQC) for quality and safety concerns about the services it regulates. You can find out more about how the CQC handles concerns [here](#).
- [NHS Counter Fraud Agency](#) for concerns about fraud and corruption their [online reporting form](#) can be used or you can access advice via their freephone line 0800 028 4060.

Please note that the Care Quality Commission cannot get involved in an individual employment matter, such as a concern from an individual about being bullied.

4.4.3. Concerns about Healthcare Professionals

If you would like to speak up about the conduct of a colleague, you can do this by contacting the relevant professional body such as the General Medical Council, Nursing and Midwifery Council, Health & Care Professions Council, General Dental Council, General Optical Council or General Pharmaceutical Council. If you feel able to, you should also discuss this with your manager for support.

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4.4.4. National Guardian for Freedom to Speak Up

The National Guardian can independently review how colleagues have been treated, after having raised concerns, and where NHS Trusts may have failed to follow good practice. In such incidences they might work with some of the bodies listed above to act where needed.

The National Guardian's Office can be contacted via:

enquiries@nationalguardianoffice.org.uk – 0191 249 4400 (Lines open 10am-4pm).

4.4.5. Making a Protected Disclosure

The Public Interest Disclosure Act 1998 gives legal protection to colleagues against being dismissed or penalised by their employers as a result of publicly disclosing certain serious concerns. This is known as a “protected disclosure”.

There are very specific criteria that need to be met for an individual to be covered by the Act when they raise a concern to be able to claim the protection that accompanies it. There is also a defined list of [prescribed persons](#), to whom you can make a protected disclosure.

To help you consider whether you might meet these criteria free, independent advice can be obtained from:

- [Speak Up](#), the whistleblowing advisory charity for the NHS and social care, or
- from the independent charity [Protect](#) via 020 3117 2520.

4.5. Speaking up to your Freedom to Speak Up Guardian

If none of the other internal or external options seem right, or you don't feel comfortable speaking up via these routes, or you already have and have not had a satisfactory outcome, you can raise your concern with your FTSU Guardian.

Whilst the FTSU Guardians under UHN work collaboratively to provide a robust reporting mechanism on themes and challenges to speaking up to the group board, each trust report's themes independently to the National Guardian's Office as required.

The FTSU Guardians currently cover across UHN in a group capacity. Therefore, workers with a concern about a group/UHN issue may use any email contact and contact either guardian.

Workers with concerns about a specific trust (NGH, KGH) are advised to use the email address corresponding to that organisation, though similarly may contact either guardian independently if preferred.

The Guardian will ensure that people who speak up are thanked for doing so, that the issues they raise are responded to, and that the person speaking up receives feedback on the actions taken.

NGH has a FTSU email and phone which the Guardian(s) have access to;

ngh-tr.raising.concerns@nhs.net

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07936600845

KGH also has a FTSU email and phone which the Guardian(s) have access to;

kgh-tr.freedomtospeak@nhs.net.

07966268124

You may access anonymous reporting routes for both trusts here:

<https://forms.office.com/e/QMCfRwT5aB>

4.6. How should I speak up – Matters of Confidentiality

You can speak up to any of the people or organisations listed in section 4.4, by phone or in writing (including email).

Confidentiality

The most important aspect of your speaking up is the information you can provide, not your identity. All concerns are managed in a confidential way and will only be shared on a need-to-know basis, with consent from you.

If a colleague speaks up and asks for the identity to be protected we will not disclose it without their consent, unless there is a patient safety concern or criminal act where disclosure of their identity will be vital to preventing harm. There may also be rare occasions where we have a duty to provide details to an outside organisation. Examples could include a legal duty to provide information to the police or court or where there is a need to safeguard an individual or patient.

The Guardians will always explain this exclusion to confidentiality when hearing a concern and should it be required, will notify you prior to disclosing your identity.

Our definition of anonymous and confidential concerns (or openly speaking up), in line with the National Guardian's Office, is described below.

1. Openly Speaking Up

You are happy that the person you speak up to knows your identity and give consent that they can share this with anyone else involved in responding.

2. Confidentially Speaking Up

You are happy to reveal your identity to the person you choose to speak to on the condition that they will not share this without your consent. Should you wish to remain confidential your name will only be known to the FTSU Guardian, and this

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will be respected and protected. This enables a response to be shared with you following any investigation and learning outcomes.

3. Anonymously

You do not want to reveal your identity to anyone. You can raise a concern in a completely anonymous way as outlined in section **4.5**, or you could email with a pseudonym, leave a voicemail or send a letter to your Guardian (or another named route to speaking up).

Should you wish to raise concern anonymously this will always be respected and will not impact whether we investigate with the intention of learning to improve.

However, it does mean we are limited in the support and feedback we can offer.

Please refer to section **4.9** for additional advice and support you might seek.

In all circumstances, please explain your concern as fully as possible along with the circumstances that prompted you to speak up, in order to allow any investigation to be as thorough and informed as possible.

4.7. The Process- What the FTSU Guardians do with your concern

It is important that when you speak up to the Guardian, you inform them of anybody else you have discussed your concern with; this may be a colleague, or you may already be following People Directorate advice or have taken employment advice from a Staff Union Representative.

This ensure that we can advise effectively on how we can manage your confidentiality. Advice given by your Guardian may also differ to that of employment advice received from your Union or People Directorate, so it is important that we are aware of actions already underway or advice already given.

The FTSU Guardians are also limited in the involvement they can have with ongoing formal people processes including those such as ongoing Grievances or Disciplinary processes, unless the concern is specifically about the process itself.

Where a concern is raised with a Guardian about a staff member known to them via either a personal or professional relationship, this will be disclosed to the individual speaking up and the option given to discuss your concern with either the other Guardian or a suitable alternative.

Once you have spoken up under this policy to the Guardian, the following processes will be followed:

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4.7.1. Transcript of your Concern

You may have written your concern, but if not and you have met with the FTSU Guardian or one of our Champions, you will be provided with a transcript of your concern(s) so that we know we have an accurate record. Champions cannot hold or manage concerns themselves so will always send any transcript or report form on to the Guardian to hold confidentially and you will be provided with a copy. If you later decide to withdraw your concern, the Guardians will retain a copy of notes and only themes will be included anonymously in quarterly reports. Where safety is an immediate risk your concern may need to be acted on regardless.

4.7.2. Triage and People Partnering Processes

The FTSU Guardian will ensure that what you have spoken up about is triaged and if there are any immediate risks to others, then the matter will be escalated to an Executive or senior manager within the Division concerns for assurance that patients, staff and others are safe. If this does not need immediate escalation, the FTSU Guardian will liaise with a senior manager (who will be agreed with you) in order that investigation and resolution can commence.

People Partnering Processes

FTSU Sits outside of the People function. The FTSU Guardian will always check with you to ensure you are fully aware of alternative People processes in order that you can make an informed choice in relation to the best process to utilise. As the FTSU Guardian is an impartial role outside of the People Function there is limited involvement they can have in these processes. If you require support in submitting a grievance or require representation or assistance at a formal meeting, you may seek support from your union. Additionally in some cases you may be able to take a colleague with you for support in attendance at informal meetings. Please refer to the resolution policy.

4.7.3. Equality, Diversity and Inclusion

Where your concern includes or is solely about any form of discrimination, the FTSU Guardian will discuss with you the potential for the EDI team to be involved in any investigation and contribute to findings. Your concern would remain recorded as a FTSU Concern with oversight by the Guardian, who will oversee any resolution and will check on your behalf that concerns have been thoroughly investigated.

4.7.4. Informal Resolution

When we discuss your concern, we will always present alternative options for speaking up and raising your concern to ensure you are aware of all the routes available to you. It may be that after doing this you are comfortable to raise your concern directly with your manager or a senior leader yourself, or are happy for the Guardian to organise an informal meeting

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We will explore a way to seek resolution of your concern raised in the quickest way possible but will ensure that it is thorough, fair and transparent. If the manager allocated to investigate your concern proposes that this can be addressed through a meeting informally, with your agreement, we will follow this route.

4.7.5. Investigation Reports

Where a formal investigation is undertaken, and doesn't sit within the remit of existing processes such as those under PSIRF or a Grievance for example, the format of the report to be used is detailed in appendix 3. The Guardian will not undertake the investigation themselves – an appropriate investigator will be appointed.

When finalised, this will initially be shared with the commissioning manager and the FTSU Guardian, who will both have a responsibility to ensure that the investigation report thoroughly covers your concerns, identifying actions and learning necessary.

The report will then be shared with you by the FTSU Guardian once finalised and you will have the opportunity to consider and raise any questions that you may have.

If your concern is resolved informally via a meeting, notes of that meeting and agreed actions/learning will be shared with you by the FTSU Guardian.

4.7.6. Learning and Reporting

Speaking up is here to help improve your working life at UHN and improve quality and safety for our patients, so identifying learning actions is vital.

We will detail what has improved or actions planned and share this with you and will detail improvements in our quarterly reports that are shared through various meetings such as People Committee and Trust Board on a quarterly basis. Information will be anonymised and individuals never identified in our reports.

The FTSU Guardian will also look for themes and emerging risks if similar issues of concern are being raised so that this can be triangulated and where there may be a wider improvement action needed across a team, speciality or Trust-Wide.

External reporting takes place to the National Guardian's Office on a quarterly basis so that we can contribute to national reporting and also use that information to benchmark ourselves.

The FTSU Guardian will also promote the benefits of speaking up by sharing improvements across the trust.

Within our FTSU Quarterly and Annual reports, we include a breakdown of.

- Concerns by the Division it is about
- Concerns by the Professional Group (of the individual speaking up)
- Concerns by Internal Theme
- Concerns by NGO Theme
- A narrative breakdown of themes and trends from concerns

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- Developments and engagements
- Learning actions from speaking up
- Feedback received from staff speaking up

NGO Categories are compared against the national average and these include:

- Worker Safety and/or Wellbeing
- Inappropriate Behaviours and Attitudes
- Patient Safety/Quality
- Detriment

Internally, we categories our cases by the following themes. These are agreed across UHN and used by guardians at both sites to allow comparability of data.

- Behaviours/Attitudes
- Collaboration
- Discrimination
- Fraud
- Patient Safety
- Worker Safety
- Bullying/Harassment
- Communication
- Environment and Infrastructure
- Information Governance
- Systems, Policies and Processes

4.7.7. Dissatisfaction with the FTSU Guardian or outcome of investigation

Please let the FTSU Guardian know if you are dissatisfied with how your concerns have been managed or investigated and/or if you feel the outcome findings are wrong.

Your dissatisfaction will be acted on and the FTSU Guardian will discuss with a senior manager or Director and seek evidence of findings or ask that the investigation is re-opened. You will be supported throughout by the FTSU Guardian. External organisations that you may consider contacting are detailed in **4.4.2**.

If you wish to raise a concern about a FTSU Champion, please contact your FTSU Guardian.

IF you wish to raise a concern about the FTSU Guardian, please contact the Executive Director responsible for Speaking Up.

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If you wish to raise a concern about the Director responsible for FTSU, please contact the Non-Executive Director responsible for Speaking up.

4.8. Evaluating your experience

You will be asked about your experience of speaking up so that we can continuously seek to improve. We will also seek assurance from you that you are not experiencing any detriment as a result of speaking up, as this is taken seriously and acted on. Details about detriment and how this is managed can be found in Appendix 2.

4.9. Advice and Support

We recognise that it might feel stressful to raise a concern, and there are a number of services available to support staff should they be concerned with how their health and wellbeing are being affected.

Support can be found locally through the staff zone on Knet at KGH
<http://kghintranet/staff/Pages/default.aspx>

And via the health and wellbeing pages on the NGH intranet

[Health and Wellbeing pages](#)

Additional support and advice are available through the following national services and bodies:

- [Speak Up Direct](#) provides free, independent, confidential advice on the speaking up process.
- The charity [Protect](#) provides confidential and legal advice on speaking up.
- The [Trades Union Congress](#) provides information on how to join a trade union.
- [The Law Society](#) may be able to point you to other sources of advice and support.

[The Advisory, Conciliation and Arbitration Service](#) gives advice and assistance, including on early conciliation regarding employment disputes.

5. ROLES & RESPONSIBILITIES

ROLE	RESPONSIBILITY
Group Chief Executive of UHN and UHL	Responsible for ensuring a speaking up culture across the University Hospitals of Northamptonshire and delegating responsibility for this at Northampton General Hospital and Kettering General Hospital to the Group Chief Executive of UHN.

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ROLE	RESPONSIBILITY
Chief Executive of UHN, including Northampton and Kettering General Hospitals	- Ensuring the Trusts have a culture that encourages staff to speak up in a safe and learning environment, and where staff are thanked for doing so. - Meeting with the FTSU Guardians on a regular basis to be briefed on FTSU concerns and being accessible as a point of escalation. - Delegates executive lead responsibility for speaking up to the appointed executive lead for FTSU. - Ensure the Trust has a role specific training programme for staff including Board Members.
Executive and Non-Executive Leads for FTSU	- Ensuring that the FTSU Guardian is supported in their role and given adequate time and resources in order to enable staff to speak up in a safe culture where speaking up is valued. - Producing, with the Board, an annual Board self-assessment in order to be assured on a speaking up culture and to address any gaps in best practice.
Senior Independent Director (SID)	- As a non-executive director, the appoint SID will support best practice in speaking up and be responsible for overseeing concerns raised about Board Members, working collaboratively with the FTSU Guardian and the Group Chief Executive. - Advise the FTSU Guardian on the management of any concerns raised about the Group CEO and provides assurance on those concerns and investigations to the group Chairman of University Hospitals of Northamptonshire.
Freedom to Speak Up Guardian	- Management and delivery of a speaking up programme for all staff that is accessible, efficient and effective and has the aim of learning for improvement at all times. - Supporting and building a network of Values Ambassadors across the Trust in order to improve accessibility and support in speaking up. - Reporting on the Freedom to Speak Up (FTSU) programme, together with policy and strategy production responsibilities; provision of training, and to oversee continuous development of an open and safe culture for speaking up.
Values Ambassadors/FTSU Champions	- Support the FTSU Guardian in supporting staff to speak up and helping resolve concerns within a positive culture. - Support the FTSU Guardian in the promotion of speaking up throughout the organisation.
Head of OD & Inclusion	To work collaboratively with the FTSU Guardian to assist appointed investigations into concerns about equality, diversity and inclusion matters.

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ROLE	RESPONSIBILITY
Managers at all levels	Ensuring that they support an open culture for speaking up and that they respond to concerns in a positive way, supporting investigations and learning. A guide for managers (called 'Listen Up') has been produced by the National Guardian's Office and Health Education England (HEE), which can be accessed on HEE's elearning for healthcare platform.
Staff appointed to investigate FTSU Concerns	- Must adhere to the FTSU investigation standards, meet with staff who have spoken up and ensure investigations are thorough in addressing all concerns raised, identifying relevant learning. - Where it becomes apparent an existing people process or patient safety investigation framework is more appropriate, the investigator should close the ongoing FTSU investigation and allow these to take their course as appropriate.
All Trust Employees	- Support the Trust to achieve its Vision - Adhere to and embrace the organisational values of "compassion, courage, respect, integrity and accountability".
Group Board of Directors	- Ensure there is a culture of openness and support for speaking up and that they are continually self-assessing and measure the organisation's culture, addressing any improvements required. This includes ensuring that there is a culture of no tolerance of any detriment towards those staff who speak up. - Openly receive regular reports on speaking up from FTSU Guardians.
Group People Committee	Delegated as a Board Committee to receive reports and therefore assurance on speaking up in the organisation, triangulating this information with other people data and progress against strategy commitments and objectives.

6. DEFINITIONS

FTSU/(FTSUG)	Freedom To Speak Up (Guardian)
NGO	National Guardian's Office

7. COMPLIANCE STATEMENTS

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Equality & Diversity

This document has been designed to promote equality, diversity, inclusion and human rights in line with the Trust's Equality, Diversity and Inclusion Strategies. It has also been analysed to ensure that as part of the Public Sector Equality Duty the Trust has demonstrated that it has given 'due regard' to its equality duty and that, as far as is practicable, this document is free from having a potential discriminatory or adverse/negative impact on people or groups of people who have relevant protected characteristics, as defined in the Equality Act of 2010.

The completed 'equality analysis' assessment tool must be submitted with the policy. The assessment tool must be completed by someone trained to carry out impact assessments.

NHS Constitution

The contents of this document incorporates the NHS Constitution and sets out the rights, to which, where applicable, patients, public and staff are entitled, and pledges which the NHS is committed to achieve, together with the responsibilities which, where applicable, public, patients and staff owe to one another. The foundation of this document is based on the Principles and Values of the NHS along with the Vision and Values of University Hospitals of Northamptonshire Group (UHN).

Person Identifiable/Confidential Data and Privacy Rights

In line with the UK General Data Protection Regulation (2016) and the Data Protection Act (2018) the Trust is obliged to treat all information in a secure, professional and ethical manner, whilst keeping all person identifiable and personal data confidential. In addition, the Trust will not share employee information with a third party, unless there is a legal basis for disclosure, for example for the detection and prevention of crime, or if it is in the legitimate interest of the Trust.

As part of the Data Security and Protection policies of the Trust and data protection legislation, if the Trust is required to share any reports / information / data relating to the processes and procedures of any of our policies, the data, where possible, will be anonymised to remove person identifiable / confidential data unless there is a justifiable reason not to. It is important that policy leads are aware that policies may be released in response to FOI requests.

For further information regarding a Data Protection Impact Assessment and Sharing Personal Data, please contact the Data Security and Protection Team @ ngh-tr.data.protectionact@nhs.net OR datix.enquiries@nhs.net

8. IMPLEMENTATION & TRAINING

We ask all our workers to complete the online training ([Training - National Guardian's Office](#)) on speaking up. The online module on listening up is specifically for managers to complete, and is mandatory for all staff Band 6 and above. The module on following up is for senior leaders to complete (however all staff are welcome to complete all modules).

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You can find out more about what Freedom to Speak Up (FTSU) is in these [videos](#). The FTSU Guardian must be trained by the NGO and maintain competency for the role. Annual refresher training must also take place, provided online by the NGO.

A training needs analysis will be produced in liaison with the Training and Development Team alongside People Directorate and Executive Team in order to identify role specific mandatory training on Speaking up that is available online.

The Organisation will follow the guidance of the NGO on staff groups who should access this training that will be recorded and monitored via the Electronic Staff Record system:

Module	All Staff	Managers at all levels	Senior Leaders	Why?
Speak Up*	✓	✓	✓	What is speaking up and why it matters (24-minute video) *Speak up module is mandatory for all staff on band 6 and above.
Listen Up		✓	✓	Listening to concerns, understanding barriers to speaking up, how to response and why someone speaks up (39-minute video)
Follow Up			✓	Promoting a consistent and effective FTSU culture, enabling staff to speak up and be confident they will be listened to and action taken.

***Follow up** training should be accessed by non-executive directors, lay members and governors in the Trust.

9. MONITORING & REVIEW

FTSU is subject to audit by internal auditors as part of governance and well led assurance, as determined by the annual audit plan. Audit reports will be considered by the audit committee and people committee and will be presented by the FTSU Guardian.

Requirement of the policy and compliance to be monitored	Frequency of audit	Responsibility for audit	Results of monitoring reported at:
Completion of FTSU Self Reflection Tool	Minimum of every 2 years, or when there is a substantial change in	FTSU Guardian, Executive and Non-	Outcomes reported at People

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	requirement or provision of the FTSU service	Executive Directors for FTSU	Committee and Board
Feedback from individuals using the FTSU Service	Feedback requested upon case closing; reported in quarterly FTSU report to People Committee/Board	FTSU Guardians	People Committee and Board
Compliance with recommendations set out by National Guardian's Office, NHSE and DHSC Case Reviews	Actions agreed within 3 months of publication of a case review	FTSU Guardians	People Committee and Board
Effectiveness of FTSU Engagement and Comms Plan	Annually	FTSU Guardians, Executive & Non-Executive Leads	People Committee and Board

10. REFERENCES & ASSOCIATED DOCUMENTATION

Department of Health and Social Care (2023). The NHS Constitution for England. [online]. London. DHSC. Available from: <https://www.gov.uk/government/publications/the-nhs-constitution-for-england> [Accessed July 2024]

We each have a voice that counts (2025) *NHS England*. Available at: [NHS England » We each have a voice that counts](#) [Last Accessed 10th June 2025]

Freedom to Speak Up Training (2025) *National Guardian's Office*. Available at: [Training - National Guardian's Office](#) [Last Accessed 10th June 2025]

The national speak up policy (2022) *NHS England*. Available at: [NHS England » The national speak up policy](#) [Last Accessed 10th June 2025]

Whistleblowing: list of prescribed people and bodies (2025) *Gov UK*. Available at: [Whistleblowing: list of prescribed people and bodies - GOV.UK](#) [Last Accessed 10th June 2025]

Speak Up [2023] *Speak Up Direct*. Available at: [Speakup Direct](#) [Last Accessed 10th June 2025]

Protect Advice (2025) *Protect*. Available at: [Protect - Speak up stop harm - Whistleblowing Homepage](#) [Last Accessed 10th June 2025]

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Join a Union (2025) *TUC*. Available at: [Find a union for you | TUC](#) [Last Accessed 10th June 2025]

www.england.nhs.uk. (n.d.). *NHS England» We each have a voice that counts*. [online] Available at: <https://www.england.nhs.uk/looking-after-our-people/the-programme-and-resources/we-each-have-a-voice-that-counts/>.

POLICY

APPENDICES

Appendix 1 Equality Impact Assessment (EqIA)

Equality Impact Assessment (EQIA) – Initial Assessment				
1.Division	Corporate	2. Department	Chief Executive's office	
3. Person(s) completing this form	Luke Sullivan	4. Contact Information	Luke.sullivan7@nhs.net	
5. Others involved	j.sanjeevi@nhs.net	6. Start date of this assessment		
7. What is being assessed (please tick)	New Procedural Doc ☐ Existing Procedural Doc ☒ New Service or Function ☐ Existing Service or Function ☐	8. Implementation/ effective date	07/04/2025 (Implementation of group policy)	
9. Name of Policy	Freedom to Speak Up: Raising Concerns at Work			
10. What are the aims / objectives of policy this service?	To identify to staff how they may speak up and raise concerns in their place of work, the mechanisms in place to support this, and any internal and external support and advice available.			
11. Who will be impacted by policy / service (please tick)	Patients ☐ Carers ☐ Public ☐ Staff ☒ Other ☐	11a. If staff are impacted, how many individuals / Which Groups of Staff are likely to be affected?	All staff (The policy provides support and advice for all workers at UHN).	
12. Who has been involved in the policy / service development (please tick)	Patients ☐ Carers ☐ Public ☐ Staff ☒ Other ☐	12a. If yes, who have you involved and how have they been involved	FTSU Guardians, Champions	
13. What further consultation method(s), if any, are you proposing?	Review of policy by stakeholders including people teams, FTSU Champions, executive lead, patient safety, senior leaders, communications team		14. How are any changes / amendments to the policy / service to be communicated?	Communicated by email to policy authors
Equality Impact Assessment – Initial Assessment Outcome				
15. As part of the completing the above have you or a member of the group conducting EQIA identified any issues relating to the specific service/policy/plan in relation to gender, race, age, religion/belief, disability, sexual orientation, gender reassignment, marriage & civil partnership or pregnancy & maternity?	No	☐	EQIA Complete - If relating to a procedural document submit as part of the ratification process - If not relating to procedural documents please send completed EQIA to - KGH - kgh-tr.diversity@nhs.net - NGH - ngh-tr.edi@nhs.net	
	Yes	☒	Requires EQIA Full Assessment to be completed – see below.	

Review of any previous EQIA actions

[illegible]

Review of information, equality analysis and potential actions

Protected characteristics groups from the Equality Act 2010	What do you know? Summary of data about your service-users and/or staff	What do people tell you? Summary of service-user and/or staff feedback	What does this mean? Positive / Neutral / Negative Impact identified from data and feedback (actual and potential)	What can you do? All potential actions to: • advance equality of opportunity, • eliminate discrimination, and • foster good relations
Age	No specific barriers to speaking up have been identified at this time by the NGO. 2024 staff survey data for UHN shows that staff feel less safe to speak up in older age brackets and are less confident that the concerns will be addressed.	Conversations where staff nearing retirement have expressed they don't feel their concerns will be taken seriously or resolved as 'the will be leaving soon'.	Negative- Potential for older staff to feel there is less point in raising concerns.	Continued feedback and publishing of good news stories and actions taken to address concerns raised by all staff groups.
Disability	No specific barriers to speaking up have been identified at this time by the NGO. 2024 staff survey data for UHN shows staff with LTC feel more safe to speak up than those without.	Staff with disabilities/LTC have indicated they prefer speaking up to someone who has experience or has a disability.	Neutral	Continued engagement with staff networks needed and interaction with staff with LTC/disabilities to understand their needs regarding speaking up.

Protected characteristics groups from the Equality Act 2010	What do you know? Summary of data about your service-users and/or staff	What do people tell you? Summary of service-user and/or staff feedback	What does this mean? Positive / Neutral / Negative Impact identified from data and feedback (actual and potential)	What can you do? All potential actions to: • advance equality of opportunity, • eliminate discrimination, and • foster good relations
Gender reassignment	2024 staff survey- No indication for KGH but NGH data shows staff not identifying as the gender assigned at birth feel less safe to speak up.	We have not heard from staff undergoing/having undergone gender reassignment	Neutral	Further contact and surveying to individuals needed to build an understanding of how we can improve equity.
Pregnancy and maternity	No specific barriers to speaking up have been identified at this time by the NGO or internal data	We have not heard from staff who are pregnant or on maternity leave about speaking up.	Neutral	Further contact and surveying to individuals needed to build an understanding of how we can improve equity.
Race/ethnicity Including migrants, refugees and asylum seekers	There are concerns from the National Guardian's Office about the extent that internationally trained staff feel safe to speak up. Global majority staff fear reprisal for speaking up including discrimination based on their race and ethnicity. NGO reviews have identified that black and minority ethnic	Internationally trained staff are fearful of losing their right to work in the UK as a result of speaking up, and feel that their leaders don't understand their circumstances. Staff from the global majority fear have cited feeling fearful of detriment and discrimination, including	Negative – Potential for staff to not speak up based on fears unique to their race and ethnicity	Continued participation from FTSU Guardians in staff networks to raise awareness of the service and how to speak up. Improved collection of equality monitoring data to enable better comparison to national data and understand the position of UHN.

Protected characteristics groups from the Equality Act 2010	What do you know? Summary of data about your service-users and/or staff	What do people tell you? Summary of service-user and/or staff feedback	What does this mean? Positive / Neutral / Negative Impact identified from data and feedback (actual and potential)	What can you do? All potential actions to: • advance equality of opportunity, • eliminate discrimination, and • foster good relations
	respondents are more likely to cite barriers to speaking up including that it won't be taken seriously and not understanding the FTSU Guardian role.	an impact on their career prospects for the future.		Quick and effective action in cases where detriment does occur. Participation in inductions of international staff and pastoral days to highlight how to speak up.
Religion or belief	No specific barriers to speaking up have been identified at this time by the NGO. Staff survey 2024 results indicate small variations in feeling safe to speak up with staff having no religion or preferring not to say feeling the least safe.	We have not heard from staff on matters of religion or belief concerning speaking up.	Neutral	Engagement with pastoral leads and improving champion representation from different religions and beliefs.
Sex/Gender	2024 staff survey- No indication for KGH but NGH data shows staff not identifying as the gender assigned at birth feel less safe to speak up.	Male staff sometimes told to 'man up' by male colleagues rather than raise their concerns. Female staff have reported feeling	Negative – There are different reasons why people of different genders feel uncomfortable speaking up.	Further engagement with PRIDE network to understand barriers for lgbt+ staff and those who do not identify as male/female.

Protected characteristics groups from the Equality Act 2010	What do you know? Summary of data about your service-users and/or staff	What do people tell you? Summary of service-user and/or staff feedback	What does this mean? Positive / Neutral / Negative Impact identified from data and feedback (actual and potential)	What can you do? All potential actions to: • advance equality of opportunity, • eliminate discrimination, and • foster good relations
	Generally male staff feel slightly safer to speak up across UHN according to results.	intimidated by male colleagues and seniors when trying to raise concerns. We have not heard from colleagues who do not identify as male/female.		Feedback in reports on instances where staff cite gender specific barriers for wider sharing with the organisation.
Sexual orientation	No specific barriers to speaking up have been identified at this time by the NGO. 2024 staff survey results for UHN indicate little difference in feeling safe to speak up (staff identifying as gay or lesbian feel safer to speak up at KGH).	We have not heard from LGBT+ staff on experiences or barriers to speaking up.	Neutral	Further and continued engagement with EDI Team and PRIDE network to understand potential barriers to speaking up.
Marriage and civil partnership	No specific barriers to speaking up have been identified at this time by the NGO or internal data	We have not heard from staff on matters of marriage/civil partnership and the impact on speaking up.	Neutral	

Protected characteristics groups from the Equality Act 2010	What do you know? Summary of data about your service-users and/or staff	What do people tell you? Summary of service-user and/or staff feedback	What does this mean? Positive / Neutral / Negative Impact identified from data and feedback (actual and potential)	What can you do? All potential actions to: • advance equality of opportunity, • eliminate discrimination, and • foster good relations
Other relevant groups (e.g. carers)	No specific barriers to speaking up have been identified at this time by the NGO. Survey results 2024 indicate that staff looking after people with LTC feel slightly less safe to speak up. Colleagues who are also part of the armed forces or veterans may also face barriers to speaking up.	Working carers have identified that they feel they have less time to speak up and feel that the flexible arrangements they may have in place could be affected (detriment).	Negative	Flexibility around staff's needs and arrangements to give them time to speak up. Further engagement with veterans networks to understand barriers to speaking up.

Equality Impact Assessment – Full Assessment Outcome

Assessment of overall impacts and recommendations	There are a number of gaps in knowledge around the barriers that individual staff groups face, including those outlined above such as sexual orientation, gender, marriage/civil partnership, pregnancy and maternity and religion. Where we are aware of potential barriers to speaking up, guardians have reached out to supporting individuals and teams to raise awareness of speaking up and discuss how detriment is addressed.
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	Recommendations: - Improved equality monitoring data; all staff who speak up to be given an equality monitoring form with reassurances of anonymity and how we hold their data. This will be used to identify which groups are and aren't speaking up across UHN and allow a targeted approach on communications and engagements. - FTSU Survey on barriers to speaking up to be launched with assistance from EDI team to identify from our staff what they feel matters and needs addressing. - Continued engagement with staff networks - Improved recruitment drive for FTSU champions to ensure we have a diverse network of individuals to contact
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Equality Impact Assessment – Detailed list of data/community feedback that informed your EQIA

Title (of data, research or engagement)	Date	Gaps in data	Actions to fill these gaps: who else do you need to engage with? (add these to the Action Plan below, with a timeframe)
Speak Up Review into experiences of overseas-trained workers - National Guardian's Office	Accessed 07/04/2025	Includes generalised statements and a plan for a speak up review to develop recommendations to foster a more inclusive culture	Review publication was planned for late 2024 but still awaiting. Once published we will be able to do a gap analysis on UHN FTSU service.
Inclusive FTSU.pdf	Accessed 07/04/2025	Overview of data “shedding light on the role of ethnicity in speaking up”.	Continued engagement with REACH network and our global majority champions to understand barriers based on ethnicity and highlight the role of FTSU.

NHS Staff Survey dashboard	Accessed 07/04/2025	Used to identify differences in confidence in speaking up for different demographic groups.	Full analysis needed against staff survey results with national and local comparisons for questions relating to speaking up/raising concerns.
Engagement with Staff Networks	Ongoing		

Equality Impact Assessment – Prioritised Action Plan¹

Impact identified and group(s) affected	Action planned	Expected outcome	Measure of success	Timeframe
All staff groups	Feedback forms for FTSU to include equality monitoring forms	Improved access for staff to share this data with the guardian	Increase in data available to guardians for comparisons to staff survey results nationally and locally	By 01/05/2025
All staff groups	FTSU Barriers survey to be launched	Better understanding of the barriers staff groups face	Feedback to survey will inform an action plan to addressing barriers	By 01/08/2025

¹ These actions must now be transferred to service or business plans and monitored to ensure they achieve the outcomes identified.

Equality Impact Assessment – Final Assessment Outcome

As part of the completing the above have all the issues identified been addressed as part of EQIA assessment	No	☐	Please speak to Head of Organisational Development and Inclusion
	Yes	☐	EQIA Complete - If relating to a procedural document submit as part of the ratification process - If not relating to procedural documents please send completed EQIA to - KGH - kgh-tr.diversity@nhs.net - NGH - ngh-tr.edi@nhs.net

Appendix 2

Responding to experiences of disadvantageous or demeaning treatment as a result of speaking up; generally referred to as “detriment”.

Such treatment may include but are not limited to;

- Experiencing poor behaviours not in line with our organizational values e.g. being ostracized, experiencing incivility or failures to adhere to Trust values.
- Sudden and unexplained changes to work responsibilities, or not being given adequate support.
- Being moved from a team or inexplicable management of change.
- Being denied access to development opportunities, training or study leave without good reason.
- Being overlooked for promotion.

What to do

When you or a colleague have spoken up and believe that you are experiencing disadvantageous or demeaning treatment as a result;

Speak to a manager or the Freedom to Speak Up Guardian as soon as possible, or see FTSU policy section 4.4 for other options.

- Your concern will be taken seriously
- You will be supported whilst your concern is reviewed
- You will be kept informed and provided with feedback
- You will be signposted to wellbeing support if needed

Once a colleague reports disadvantageous or demeaning treatment after speaking up;

Manager to Inform FTSU Guardian where appropriate

Issue reported to FTSU Guardian

Within 72 hours, or immediately if significant risks identified

Inform the Chief Executive Officer and Executive Lead for speaking up and clarify need for investigation

- Guardian will clarify matters of confidentiality, which information will be shared and with whom
- FTSU Guardian will record the concern

- Consider if immediate action is required to protect the worker from disadvantageous or demeaning treatment
- Consider any potential patient safety issues and immediate actions required
- Receive assurance line management arrangements are in place to support anyone who might be affected
- Responsible exec to co-ordinate discussion involving FTSU Guardian and appropriate colleagues, for example, operational colleagues, HR, patient safety, safeguarding.

Further information on how we handle detriment can be found [here](#), as outlined by the National Guardian's Office in January 2025.

When detriment has been reported to the line manager or Freedom to Speak Up Guardian, the following checklist will be considered and completed in full;

- Clarify matters of confidentiality, what information will be shared and with whom
- Undertake a detriment risk assessment if not already done
- Consider if any immediate action is required to protect the worker from disadvantageous or demeaning treatment (particularly important in the case of perceived bullying and/or harassment). If the worker has spoken to the guardian, the guardian will speak with the appropriate line manager if consent is given.
- Consider any potential patient safety issues and immediate action required.
- Receive assurance that line management arrangements are in place to support anyone who might be affected. The guardian will speak with the appropriate line manager if consent is given. If the consent is not given, the guardian should discuss alternative support such as union or a more senior manager.
- Identify independent lead for any review/investigation. Freedom to Speak Up Guardian should seek assurance this has happened
- Share and record key actions, outcomes, learning and recommendations
- Share wider learning across the organization respecting confidentiality of all involved
- Line managers or Freedom to Speak Up Guardian will inform Freedom to Speak Up NED/CEO/Exec Lead/equivalent of reports of disadvantageous or demeaning treatment that has been reported to them for organizational learning. The worker should be offered additional support from Freedom to Speak Up NED/CEO/Exec lead/equivalent if consent is given.

Appendix 3

Investigation template to be used for Freedom to Speak Up (FTSU) Investigation Reports

The following sections are the minimum content requirement for FTSU investigation reports. This provides consistency to investigation reports that can be shared with people who speak up and to inform learning action plans, where relevant. Additional sections may be added if the investigator/panel is of the view that this is beneficial to the investigation methodology.

1. The Issue raised

Detail here what has been raised by the person speaking up, when and to whom and the core elements raised in terms of patient safety or work related issues.

2. Details of immediate escalation of any patient or staff safety risks

Detail here how any immediate risks to patient or staff safety have been escalated by the Freedom to Speak Up Guardian/Champion before the investigation has commenced. This will be relayed to the investigator/panel by the FTSU Guardian. Also detail what actions were taken to address any immediate risks.

3. Terms of Reference for Investigation

List here who has commissioned the investigation and what the terms of reference (the things to be investigated) are, in list format. The ToR should also include the timescale for completion of the investigation as issued by the person commissioning the investigation.

4. Investigation Methodology

List here the mode of investigation by detailing if clinical or staff records are to be accessed, what Trust policies/guidelines will be considered and any statements or interviews that have taken place to inform the investigation. You may need to seek expert opinion on something and detail this, if relevant.

5. Communications with the person/people who have spoken up

Detail here all contacts with the person/people who have spoken up and how they will be involved in the investigation and at the same time, supported by the investigator where required. This section should also include details of how the FTSU Guardian/Champion has supported the person/people speaking up. Details of agreement on any regular contact with the person/people speaking up should be detailed here.

6. Issues of concern and findings

This is the section of the report where you detail the issues of concern raised and the findings of your investigation. You may wish to list each in order and underneath each summarise the findings and make comment on what is in line with Trust policies and values and what is not. From this, you can link findings to any recommendations you may make in later sections of the report.

7. Conclusion

Detail here your own view on what you have found in the investigation and what evidence there is to substantiate your view(s).

8. Recommendations

Detail what actions you believe need to be taken to rectify the issues that have been raised. Indicate here that the recommendations will be provided to the commissioner of the investigation to take forward and put any learning actions/action in place.

9. Action Plan

The Director who has responsibility for commissioning the investigation will populate an action plan, in liaison with senior staff in the area involved. This will be actioned, with assurances on improvement/actions taken provided to the Director for onward assurance to the FTSU Guardian.

Please always date the investigation report and detail the name of the investigator/panel members and state the date that the investigation report has been shared with the commissioner (a Trust Director or similar) and the FTSU Guardian. Your report will be initially reviewed and queries may be raised by the commissioner of the investigation or the FTSU Guardian before finalisation. Therefore please ensure version numbers are used in your investigation report in the footer.

